

devise amounted only to an estate *pur autre vie* (c). So where a testator devised *leaseholds for years* to trustees upon trust for A. for life, and after the death of A. the testator bequeathed them to B., it was held that the trustees had the legal estate during the life of A. only (d). Thus in freeholds, copyholds, and leaseholds, where there is an indefinite devise to trustees and their heirs, executors, or administrators, upon certain trusts confined to the life of one person, followed by a simple devise to another for the absolute interest, in each case the estate of the trustees is limited by implication to the life of the person who takes the life interest (e).

It has sometimes been argued that where *freeholds* are coupled with *copyholds* or *leaseholds* upon certain trusts, if the legal estate of the copyholds or leaseholds be vested in the trustees, there is a *kind of attraction [*217] which will cause the legal estate of the freeholds also to be vested in the trustees; but whatever attraction may arise from the presumption that the different kinds of property were meant to be held together during the continuance of the trusts effecting them, there is no such attraction as will keep the legal estate of any species of property vested in the trustees beyond the period limited for the trusts of that property (a). It seems, however, that in a *deed*, where the construction adheres more strictly to the letter, a limitation to trustees and *their heirs* upon trust to pay an annuity for life only, with remainders over, would have conferred the fee simple (b).

2. **Limitation to trustees and their heirs to preserve contingent remainders, the words "during the life of," &c. being omitted.** — In a *devise* to A. for life, remainder to trustees and their heirs to preserve contingent remainders (the words "during the life of A." being omitted), with remainders over, the

(c) *Doe v. Barthrop*, 5 Taunt. 382; *Baker v. White*, 20 L. R. Eq. 166; and see *Ward v. Burbury*, 18 Beav. 190; *Doe d. Players v. Nicholls*, 1 B. & C. 342; *Doe v. Cafe*, 7 Exch. 675.

(d) *Stevenson v. Mayor of Liverpool*, 10 L. R. Q. B. 81.

(e) *Baker v. White*, 20 L. R. Eq. 177, *per cur.*

(a) *Baker v. White*, 20 L. R. Eq. 166.

(b) *Wykham v. Wykham*, 11 East, 458; see S. C. 18 Ves. 419, and following pages; 3 Taunt. 316.